

25STCV32573 25STCV32573

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 25STCV32573 Hearing Date: July 17, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

AHMED

ASHOUR

Plaintiff,

vs.

PARASYS,

INC., et al.

Defendants

Case No.:

25STCV32573

Hearing

Date:

July 17, 2026

ORDER

GRANTING MOTION TO VACATE DEFAULT

I. BACKGROUND

Defendant Robert Ebe ("Ebe"), a security guard acting within the scope of his employment by Defendant Parasys, Inc. ("Parasys"), allegedly demeaned, assaulted, and battered Plaintiff Ahmed Ashour ("Ashour"), unprovoked. Ashour sues Defendants for five causes of action, including civil assault and battery.

On March 10, 2026, the Court entered default against Ebe.

On April 16, 2026, Ebe filed the instant motion to vacate entry of default. Ashour filed an opposition.

II. LEGAL STANDARD

Code

of Civil Procedure section 473, subdivision (b)[1], allows the Court to vacate dismissal, default or any other order taken against a party via the party's own mistake, inadvertence, surprise or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein.

"Section

473(b) provides for both discretionary and mandatory relief. [Citation.]"

(Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.) The discretionary provision grants relief based upon a party or legal representative's mistake, inadvertence, surprise, or neglect. The discretionary provision states in pertinent part:

"The

court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time,

in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”

The
mandatory provision states in pertinent part:

“Notwithstanding
any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.”

“The purpose of this mandatory relief provision is to alleviate the hardship on parties who lose their day in court due to an inexcusable failure to act by their attorneys. [Citation.]” (Rodriguez v. Brill (2015) 234 Cal.App.4th 715, 723, emphasis added.)

III. DISCUSSION

Ebe
requests the Court vacate default pursuant to section 473, subdivision (b), as default was entered due to attorney’s mistake. In order for a court to grant relief pursuant to the mandatory provision of section 473, subdivision (b), a request for relief must be made within 6 months of entry of dismissal. It must contain an attorney’s sworn affidavit attesting to their mistake, inadvertence, surprise, or neglect, resulting in entry of default, along with a copy of a proposed pleading.

Ashour served Ebe with the complaint via mail, pursuant to section 415.30. Service was not effectuated until January 6, 2026, when it was acknowledged by Ebe’s counsel. (Mot., Reccius Decl. ¶ 2.) After failing to timely meet and confer, on February 6, 2026, Ebe filed an untimely declaration for automatic extension for demurrer, extending the deadline to March 9, 2026. (See 2/6/26

Declaration of Demurring Party in Support of Automatic Extension.) Ebe filed a demurrer on March 9, 2026; although initially received, the demurrer was subsequently denied due to failure to provide hearing information and comply with the pleading format. (Mot., Reccius Decl. ¶¶ 6-9.) Ebe refiled the demurrer on March 11, 2026. However, Ashour had requested and been granted entry of default against Ebe on March 10, 2026.

Ebe requests the Court vacate entry of default as default was only entered due to Ebe's counsel's mistake. Counsel timely filed a demurrer that was subsequently rejected for defects in form, not in content or timing. Had counsel submitted a properly formatted demurrer, default would not have been entered against Ebe. This is supported by declaration from Benjamin S. Reccius, Ebe's counsel, who attested the error was his own. (Id. at ¶ 24.)

Ashour argues this does not constitute Reccius's mistake or excusable neglect because the actual formatting mistake was committed by Reccius's paralegal, Jeanine Giardina. Ashour argues that, because Giardina did not provide a declaration attesting to her mistake, Ebe has failed to satisfy the requirement of demonstrating an attorney's mistake via declaration of the attorney. However, the actual individual who incorrectly formatted the motion, or submitted the improperly formatted motion, is irrelevant for purposes of the analysis. Reccius, as the attorney assigned to this case, was responsible for ensuring properly formatted pleading papers were timely submitted in this case. The work of counsel's staff is attributable to Reccius, including the staff's mistakes. Therefore, Ebe has properly demonstrated default was entered due to counsel's mistake.

This motion was filed on April 16, 2026, less than six months after entry of default. Therefore, it is timely for purposes of granting relief under section 473, subdivision (b). The motion also contains a copy of Ebe's proposed demurrer, satisfying the pleading requirements. Relief is mandatory. Therefore, the Court grants the motion.

IV. CONCLUSION

Defendant

Robert Ebe's motion to vacate default is GRANTED.

Ebe is ordered to give notice.

DATED:

July 17, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.